

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	16-07-2026 16:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	16-07-2026 16:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Chemicals And Fertilizers
विभाग का नाम/Department Name	Department Of Fertilizers
संगठन का नाम/Organisation Name	National Fertilizers Limited (nfl)
कार्यालय का नाम/Office Name	Nfl Panipat
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id : Buyer Email id: dilrajsingh@nfl.co.in
कुल मात्रा/Total Quantity	10
वस्तु श्रेणी /Item Category	Spare Actuator-1 , Repair Kit-1 , Spare Actuator-2 , Repair Kit-2 , Spare Actuator-3 , Repair Kit-3 , Spare Actuator-4 , Repair Kit-4 , Spare Actuator-5 , Repair Kit-5
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	Spare Actuator, Model- S175S07, Repair Kit for Pneumatic Actuator, Model- S175S07, Spare Actuator, Model- S100S07, Repair Kit for Pneumatic Actuator, Model- S100S07, Spare Actuator, Model- S250S09, Repair Kit for Pneumatic Actuator, Model- S250S09, Spare Actuator, Model- S125C07, Repair Kit for Pneumatic Actuator, Model- S125C07, Spare Actuator, Model- S100C07, Repair Kit for Pneumatic Actuator, Model- S100C07
	Searched String: Spare Actuator, Model- S175S07 DRDO Design Bio - Digester Tank for Single Pan Bio Toilet Searched String: Repair Kit for Pneumatic Actuator, Model- S175S07 Networking Trainer Educational Kit, Point of Care Rapid Test Kits for Humans – Dengue, Malaria, Typhoid & Others, Laboratory Vials (V2) Searched String: Spare Actuator, Model- S100S07 DRDO Design Bio - Digester Tank for Single Pan Bio Toilet Searched String: Repair Kit for Pneumatic Actuator, Model- S100S07 Networking Trainer Educational Kit, Point of Care Rapid Test

बिड विवरण / Bid Details	Kits for Humans – Dengue, Malaria, Typhoid & Others, Laboratory Vials (V2), Widal Test Kit - Agglutination Method for Human Samples, C-Reactive Protein (CRP) Test Kit - Latex Agglutination Method for Human Samples
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Searched String: Spare Actuator, Model- S250S09 DRDO Design Bio - Digester Tank for Single Pan Bio Toilet Searched String: Repair Kit for Pneumatic Actuator, Model- S250S09 Networking Trainer Educational Kit, Point of Care Rapid Test Kits for Humans – Dengue, Malaria, Typhoid & Others, Laboratory Vials (V2), Real Time PCR Kits (V2), DRDO Design Bio - Digester Tank for Single Pan Bio Toilet Searched String: Spare Actuator, Model- S125C07 Recirculating chiller, 7 Watt White-LED Based Solar Street Lighting System As Per MNRE Specification, Solar Based Home Systems (Solar Power Packs): DC Models as per MNRE Specifications, DRDO Design Bio - Digester Tank for Single Pan Bio Toilet Searched String: Repair Kit for Pneumatic Actuator, Model- S125C07 Rapid Test Kit for HIV / Syphilis / Hepatitis B Virus (HBV) / Hepatitis C Virus (HCV), Networking Trainer Educational Kit, Laboratory Vials (V2), Biochemistry Reagent Kit for Human Samples, 7 Watt White-LED Based Solar Street Lighting System As Per MNRE Specification, C-Reactive Protein (CRP) Test Kit - Latex Agglutination Method for Human Samples, Point of Care Rapid Test Kits for Humans – Dengue, Malaria, Typhoid & Others, Electric A / C Gas Leak Detector Complete Set Kit for Educational Purpose, Immunoassay Analyzer Reagent Kit for Human Samples Searched String: Spare Actuator, Model- S100C07 Solar Based Home Systems (Solar Power Packs): DC Models as per MNRE Specifications, 7 Watt White-LED Based Solar Street Lighting System As Per MNRE Specification, DRDO Design Bio - Digester Tank for Single Pan Bio Toilet Searched String: Repair Kit for Pneumatic Actuator, Model- S100C07 Rapid Test Kit for HIV / Syphilis / Hepatitis B Virus (HBV) / Hepatitis C Virus (HCV), Networking Trainer Educational Kit, Laboratory Vials (V2), Biochemistry Reagent Kit for Human Samples, 7 Watt White-LED Based Solar Street Lighting System As Per MNRE Specification, C-Reactive Protein (CRP) Test Kit - Latex Agglutination Method for Human Samples, Point of Care Rapid Test Kits for Humans – Dengue, Malaria, Typhoid & Others, Electric A / C Gas Leak Detector Complete Set Kit for Educational Purpose, Widal Test Kit - Agglutination Method for Human Samples
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	• Sequence valve
बीओक्यू शीर्षक /BOQ Title	SUPPLY OF SPARES OF SHUTOFF VALVES

बिड विवरण/Bid Details	
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	1
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	10
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Single Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	Spare Actuator-1
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 30 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	Yes (Arbitration clause document) as per DoE OM No.F.1/2/2024-PPD dated 03.06.2024 Arbitration should not be routinely included in contracts
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
-------------------	----

ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
-------------------	----

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
--	----

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within $L-1+ 15\%$ (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM_No.1 4 2021_PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

Spare Actuator-1

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sudhanshu Ranjan Srivastava	132106,National Fertilizers Limited (A Government of India Undertaking) Gohana Road, Panipat Haryana - 132106	1	180

Repair Kit-1

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sudhanshu Ranjan Srivastava	132106,National Fertilizers Limited (A Government of India Undertaking) Gohana Road, Panipat Haryana - 132106	1	180

Spare Actuator-2

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sudhanshu Ranjan Srivastava	132106,National Fertilizers Limited (A Government of India Undertaking) Gohana Road, Panipat Haryana - 132106	1	180

Repair Kit-2

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sudhanshu Ranjan Srivastava	132106,National Fertilizers Limited (A Government of India Undertaking) Gohana Road, Panipat Haryana - 132106	1	180

Spare Actuator-3

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sudhanshu Ranjan Srivastava	132106,National Fertilizers Limited (A Government of India Undertaking) Gohana Road, Panipat Haryana - 132106	1	180

Repair Kit-3

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sudhanshu Ranjan Srivastava	132106,National Fertilizers Limited (A Government of India Undertaking) Gohana Road, Panipat Haryana - 132106	1	180

Spare Actuator-4

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
-------------------------------	---------------------------

BOQ Detail Document[View File](#)

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sudhanshu Ranjan Srivastava	132106,National Fertilizers Limited (A Government of India Undertaking) Gohana Road, Panipat Haryana - 132106	1	180

Repair Kit-4**तकनीकी विशिष्टियाँ /Technical Specifications****Specification Document**[View File](#)**BOQ Detail Document**[View File](#)

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sudhanshu Ranjan Srivastava	132106,National Fertilizers Limited (A Government of India Undertaking) Gohana Road, Panipat Haryana - 132106	1	180

Spare Actuator-5**तकनीकी विशिष्टियाँ /Technical Specifications****Specification Document**[View File](#)**BOQ Detail Document**[View File](#)

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परिषी/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परिषी/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sudhanshu Ranjan Srivastava	132106,National Fertilizers Limited (A Government of India Undertaking) Gohana Road, Panipat Haryana - 132106	1	180

Repair Kit-5

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परिषी/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परिषी/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sudhanshu Ranjan Srivastava	132106,National Fertilizers Limited (A Government of India Undertaking) Gohana Road, Panipat Haryana - 132106	1	180

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Scope of Supply

Scope of supply (Bid price to include all cost components) : Only supply of Goods

2. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

1. Kindly confirm that you shall submit Warranty certificate against any manufacturing defects or poor workmanship which shall be valid for a period of 18 months from the date of supply or 12 months from the date of installation, whichever is earlier along with supply of material

2. Kindly confirm that you shall submit Interchangeability certificate along with supply of material

3. Deviation, if any quoted by bidder should be attached in separate sheet

4. Only OEM M/s Flowserve India Controls Pvt. Ltd or its authorized dealer can only participate in this bid. Bidder has to submit valid Authorization certificate from OEM to participate in this bid along with the offer

5. You shall submit duly signed and stamped copy of acceptance of document uploaded in buyer uploaded ATC document on your letter head

6. Supplier/ vendor whose turnover exceeds Rs.5.00 Crore in any financial year from 2017-18, is required to issue E-Invoice as per the provision of Rule 48 of CGST Act, 2017. If the supplier/ vendor fails to comply with the provision of Rule 48, such invoice will not be a valid invoice and the recipient/ buyer will not be entitled to claim the Input Tax Credit of GST paid as per section 16(2)(a). You may kindly specify whether E-invoice provisions are applicable to you.

7. Payment term shall as follows:

100 % payment shall be released within 30 days after receipt and acceptance of material at NFL Stores, Panipat. Successful Vendor on which contract is placed shall provide their latest bank details (valid bank mandate/ cancelled cheque copy on their letterhead, etc.) at the time of invoice submission

8. Govt has introduced following certification schemes for boosting the capabilities of MSMEs:

a) MSME Sustainable, Zero Defect Zero Effect (ZED) Certification Scheme (Silver/Gold level): This scheme focuses on encouraging MSMEs to improve their manufacturing processes, reduce defects, enhance product quality and move towards sustainability through minimizing environmental impact.

b) MSME Competitive, Lean Certification Scheme (Intermediate/Advanced Level): This scheme aims to enhance MSMEs productivity, efficiency, and competitiveness by reducing wastages in processes, inventory management, Optimization of space, energy consumption, etc. Importance of ZED and LEAN Certification:

The Ministry of Micro, Small & Medium Enterprises, Govt, aims to promote the adoption of ZED and LEAN certification schemes among MSMEs to enhance their competitiveness, productivity, and sustainability. For more information on the ZED and LEAN Certification Schemes, please visit: ZED: <https://zed.msme.gov.in/> Lean: <https://lean.msme.gov.in/>

9. MSME vendor payment through TReDS:

Govt has introduced electronic platform for facilitating the financing of trade receivables of MSMEs from buyers, through financiers, which is termed as trade receivables Discounting System (TReDS). NFL is already registered on **RXIL/Invoice Mart/M1xchange** TReDS platform.

MSME Bidders are requested to kindly register on the TReDS platforms and avail the TReDS facility, if they want to.

The contact details are as below:

TReDS platform	Contact Person	Mobile	e-mail
RXIL	Anurag Singh	7982459262	Anurag.singh@rxil.in
Invoice Mart	Yash Pal	9646511449	Yash.pal@invoicemart.com
M1xchange	Shreyash Watile	7057527698	Shreyash.watile@m1xchange.com

Bidders upon successful delivery shall submit their invoices along with the mandated enclosures in

cluding TreDS details. Upon receipt and acceptance of the supplied material/services and receipt of invoices with the mandated enclosures, NFL shall process the invoice for payment as per details submitted on TreDS platform.

Any unfinanced invoice/s of MSME bidders seeking payment from NFL directly shall be processed as per the standard payment terms agreed in PO/Contract.

All financing cost for using the facility shall be borne by the MSME bidder only.

10. Delivery period mentioned in the bid document is indicative in nature. Bidders can quote minimum delivery period in their offer. If delivery period is not quoted by Bidder in the offer, delivery period as per bid document shall be considered. However, offers with delivery period beyond the delivery time mentioned in GeM bid may be accepted at the discretion of NFL

11. Bidder must ensure to submit their online bids before last date & time for online bid submission. However, in exceptional cases Bidders may request for extension in last date of bid submission at their own risk. For such request they have to give written request through email to dilrajsingh@nfl.co.in; gauravgoel@nfl.co.in; and intimation of such request on telephone/mobile before last date of bid submission along with justifiable reason for requesting extension. Upon timely receipt of such request NFL may consider such request depending upon merit of case & NFL requirement of material. Decision of NFL regarding this shall be final

12 Benefits to MSEs and Start-Ups

Benefits under Public Procurement Policy for MSEs , Order 2012 shall be applicable for registered MSE bidders as per latest guidelines.

NFL reserves the right to relax the norms on prior experience & turnover for startups (recognized by DIPP)/Micro & Small Enterprises (MSEs) in Public Procurement subject to their meeting of quality and technical specifications. To avail such relaxation, party shall have to submit the relevant certificate issued by concerned authority.

3. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer ,is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid.All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM.If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and

published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.

8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला

सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---